

Calendar Line 6

Case Name: *Shabana Pirani v. Petrinovich Pugh & Co.*

Case No.: 25CV473159

Before the Court is Plaintiff Shabana Pirani's ("Plaintiff") motion to strike Defendant Petrinovich Pugh & Co.'s ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action which appears to arise out of Defendant's decision to terminate Plaintiff's employment. Plaintiff initiated this action on August 21, 2025, with the filing of the Judicial Form Complaint which asserts a variety of claims, including negligence and an unspecified intentional tort. On October 9, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute. Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) the Answer is untimely; (2) the Answer was not properly served on Plaintiff; (3) no proof of service for the Answer was filed with the Court; and (4) Defendant's counsel is "unauthorized" and may not appear on Defendant's behalf because they did not file a notice of appearance. The Court does not find any of these arguments persuasive.

First, Code of Civil Procedure section 412.20, subdivision (a)(3), provides that a defendant's answer to a complaint is due within 30 days after its service. Pursuant to Code of Civil Procedure section 1010.6, subdivision (b)(3), and Santa Clara County Superior Court Local Rule No. 6, a filing must be received by the Court by 5 p.m. to have it deemed filed the same day. According to the Court's filing system, Defendant's Answer was submitted for filing on October 9, 2025 at 4:31 p.m., which is 30 days after Defendant was served with the Complaint on September 9, 2025. Plaintiff urges that this filing was "after hours" and therefore must be deemed filed the next court day. But this is incorrect as a matter of law, and Plaintiff appears to be relying on *non-existent* case law, which concerns the Court,² as well as irrelevant court rules.³ The Court recognizes that Plaintiff is self-represented, but cautions her that such individuals are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties

² Plaintiff cites *Keller v. Jordan* (2005) 126 Cal.App.4th 1407, 1414, which the Court was unable to locate.

³ Plaintiff cites California Rules of Court, rule 2.261(a) for the proposition that documents filed after court hours are deemed filed on the next court day. Not only does rule 2.261 not have a subdivision (a), but it does not relate to when a document submitted for filing is to be deemed filed. Instead, it merely provides that courts that participated in pilot programs for electronic filing and forms generation under former rule 981.5 are authorized to continue to modify Judicial Council forms for that purpose.

to litigation”].) Relying on fictitious legal authority is potentially sanctionable conduct. (See *In re Domestic Partnership of Torres Campos & Munoz* (2026) 118 Cal.App.5th 1112, 1129.) That said, Defendant’s Answer was clearly timely and therefore will not be struck on this basis.

As for the service issue, Plaintiff argues that the Answer should be stricken because she did not consent to electronic service. However, a code-compliant proof of service was filed with the Court on October 9, 2025 (see Code Civ. Proc., § 1013a), which reflects that service of the Answer was effectuated on Plaintiff by mail that day to the address provided by her, which is notably the same address that she lists in the header of this motion. This filing clearly defeats Plaintiff’s contention that no proof of service was ever filed with the Court. Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) In her declaration filed in support of her motion,⁴ Plaintiff argues that Defendant’s counsel admitted to serving her electronically, but nowhere in her declaration does she address whether she received the copy of the Answer purportedly served on her via mail. Thus, she has not provided contradictory evidence which dispels the presumption of proper service, and the Court will not strike the Answer on this basis.

As for Plaintiff’s remaining argument, she cites no applicable legal authority to support her assertion that Defendant and its counsel were not authorized to participate in this action due to not filing a notice of appearance.⁵ Defendant timely filed its Answer in this case, which served as its notice of appearance in this matter, and there is simply no reason to strike it and grant Plaintiff’s request for entry of default. Therefore, Plaintiff’s motion to strike Defendant’s answer and request for entry of default is DENIED.

The Court will prepare the final order.

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⁴ The Court notes that any independently filed and procedurally unattached and inappropriate declarations filed before the notice of this motion, which was filed on January 26, 2026, are not before the Court.

⁵ Plaintiff relies on Code of Civil Procedure section 285, subdivision (b), to support her position that attorneys must file a Notice of Appearance before participating in a case. This is inapplicable as it pertains to written substitutions of attorney. She additionally relies on *People ex rel. Dept. of Transportation v. Reed* (1980) 108 Cal.App.3d 538, 542 which does not appear to exist.

Calendar Line 7

Case Name: *Atul D. Shinde v. PLM Loan Management Service, Inc. et al.*

Case No.: 25CV481591

Before the Court is Defendant PLM Loan Management Services, Inc.’s (“Defendant” or “PLM”) demurrer to the first, second, third, fourth, fifth, sixth, seventh, and eighth causes of action alleged in the complaint filed by Plaintiff Atul D. Shinde (“Plaintiff” or “Shinde”).

This is an action to quiet title. According to the allegations of the complaint, Shinde has continuously owned and occupied real property located at 22764 Majestic Oak Way, Cupertino, California, 95014 (the “Property”) since 2004. (Complaint, ¶ 12.) The Property was encumbered by two deeds of trust: a first deed of trust in favor of Quicken Loans and a second-position deed of trust in favor of TechCU (“TCU”) securing a debt with a balance of approximately \$56,000, plus accrued interest, fees, and foreclosure costs totaling approximately \$64,485.62 (the “Second Lien”). (*Id.* at ¶ 13.) TCU initiated nonjudicial foreclosure proceedings. (*Id.* at ¶ 15.) Ole M. Pedersen (“Pedersen”) submitted a winning bid of \$308,203. (*Id.* at ¶ 17.) After satisfaction of the Second Lien and other costs, surplus proceeds of approximately \$233,000 remain. (*Ibid.*)

Shinde filed the complaint on December 10, 2025, alleging the following causes of action: (1) quiet title – no trustee authority after reconveyance; (2) quiet title and voidable sale – statutory violations and procedural irregularities; (3) cancellation of instruments; (4) equitable set-aside of trustee’s sale; (5) declaratory relief; (6) wrongful foreclosure; (7) injunctive relief; and (8) violation of automatic bankruptcy stay.

The Court GRANTS judicial notice of Exhibits 1 through 9 to PLM’s request for judicial notice under Evidence Code section 452, subdivisions (c) and (d). (PLM’s Request for Judicial Notice (“RJN”), Exs. 1-9; see Evid. Code, ¶ 452, subds. (c), (d).) The Court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents of these exhibits. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 80-81 [truth of contents of court records cannot be judicially noticed]; *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 [“While courts may notice official acts and public records, we do not take judicial notice of the truth of all matters stated therein.”], internal citations and quotation marks omitted.)

The Court OVERRULES PLM’s demurrer to the entire complaint on the grounds that Code of Civil Procedure section 430.10, subdivision (c) bars this action. A party may demur on the ground that there “is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) Shinde’s opposition notes that the complaint Shinde filed in case no. 25CV468701 has been dismissed in its entirety. (Shinde’s Opposition to PLM’s Demurrer (“Opposition”), p. 3:24-27.) PLM has “withdrawn” its argument on this basis. (See PLM’s Reply in Support of Demurrer (“Reply”), p. 10:11-16.)

The Court SUSTAINS PLM’s demurrer to the complaint’s first cause of action with 10 days’ leave to amend. The purpose of a quiet title action is to establish title against adverse claims or interest in real property. (Code Civ. Proc., § 760.020.) Civil Code section 2941 states that “the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as